

Contribution of the Ministry of Education- PORTUGAL

2. National legal framework and strategic guidelines

In line with the purpose of the Convention Against Discrimination in Education, the Plans and Strategies are highlighted:

- Strategic Plan for Migrations, 2015-2020 (Resolution of the Council of Ministers [≡statutory order] no.12-B/2015, of 20th March);
- National Strategy for Equality and Non-Discrimination 2018-2030 (Resolution of the Council of Ministers [≡statutory order] no. 61/2018, of 21st May), which comprehends three action plans, (1) on equality between men and women, (2) prevention and combat violence against women and domestic violence, and (3) combat discrimination based on sexual orientation, identity and gender expression, and sexual characteristics;
- IV National Plan for the Prevention and Combat of Trafficking in Human Beings, 2018-2021 (Resolution of the Council of Ministers [≡statutory order] no. 80/2018, of 19th June);
- National Strategy for the Integration of Roma Communities, 2013-2022 (Resolution of the Council of Ministers [≡statutory order] no. 154/2018, of 29th November). Educational «strategic target»: to ensure effective conditions of access to education, learning success and lifelong learning to Roma people;
- National Plan for Youth, 2018-2021 (Resolution of the Council of Ministers [≡statutory order] no. 114-A/2018, of 4th September), for instance: 'Governance and participation', strategic goal 4 – Encourage global citizenship, particularly in the exercise of the European citizenship through education for the human rights; 'Equality and social inclusion' - strategic goal 1 – Ensure the especial protection of the rights of young people in specific contexts of vulnerability, strategic goal 3 – Raise awareness of young people on Equality and Diversity, in contexts of formal and non-formal education, strategic goal 4 – Empower teachers and non-teaching staff on Equality between Women and Men in contexts of formal and non-formal education, when working with young people; 'Defense' – strategic goal 1 – Conceive a Plan for Citizenship Education at the level of the National Defense, for young military;
- The National Citizenship Education Strategy (ENEC), a reference document which resulted from the proposal prepared and presented by the Citizenship Education Working Group, created by Order No. 6173/2016, of 10 May, to implement a specific curricular component, Citizenship and Development, aimed at developing a broad range of active citizenship competences

a supprimé: <#>.

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

Covid-19 context response /OR / Measures taken in the pandemic context

At the outbreak of the COVID-19 pandemic, as schools were closed for health safety purposes, the Ministry of Education adopted a set of broad-scope measures, designed to guarantee the Right to Education, particularly regarding the access of all students to a quality, inclusive education.

From a Human Rights perspective, the measures thereby adopted are consistent with the principles and provisions of the Convention on the Rights of the Child (CRC), namely with its articles 3, 6 and 29, and the child best interest has been given primary consideration.

Distance learning, as well as support resources, has been put in place, using channels such as websites, special education platforms, television, radio, etc. The Directorate-General for Education, in collaboration with schools, State Television (RTP), and the Gulbenkian Foundation, launched a dedicated initiative, #EstudoEmCasa, providing educational content on several subjects, daily, from 9am to 6pm, and running from March 8 to June 19 2020.

While distance learning is a method to be gradually developed and implemented through the required technological means, public schools have been provided with adequate equipment following a needs assessment. In partnership with municipalities and civil society, IT equipment has been allocated to thousands of students. At present, a plan is under way to ensure all students computer and internet access, as from the opening of the next school year.

As building an inclusive school implies looking at the specifics of each and every student, Decree-Law 54/2018 has updated the inclusive education legal framework, to ensure that no one is left behind. In the context of the current pandemic, non-discrimination strategies have been adopted by the schools, to specifically care for disadvantaged children, and children from vulnerable communities, as well as to facilitate community interaction, school-family relationship, and also to explore new learning ways.

3.6. Quality education

The right to education, and to an education that meets the needs of citizens and society, is one of the fundamental cornerstones of community development and an essential aspect of Portuguese democracy.

Access to universal schooling from the age of 3 and compulsory education for 12 years means ensuring everyone has access to a system that responds to every person's needs and ensures their success.

School autonomy is one of the cornerstones of the curriculum flexibility programme and the work undertaken by school management bodies. As such, it is essential to ensure that schools can

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

exercise this autonomy, thus consolidating school's ability to combat inequalities and construct a digital society.

In building a 21st-century curriculum, the Ministry of Education has adopted measures to provide quality learning that meets the needs of all students. To this end, Decree-Law No. 55/2018, 6th July, defines the organizing principles of primary and secondary school curricula, granting schools the autonomy to make the national curriculum more flexible, while Decree-Law No. 54/2018, 6th July, establishes the legal framework for inclusive education, with amendments introduced by Law no 116/2019, of 3rd September.

In this context, the aim is to support schools via autonomous and flexible curriculum management as an instrument that they can develop locally, in discussion with students, families and the community, so that all students acquire the competences contained in the exit profile for students leaving compulsory schooling. Knowing that autonomy is only effective if it is focused on the curriculum, schools can manage between 0% and 25% of the national curriculum, according to their target audience and situations.

In order to develop curricular, pedagogical or other innovation plans, schools were allowed to manage over 25% of the basic curriculum models for education and training provision - after the pedagogical innovation pilot projects (PPIPs) had shown schools' ability to implement innovative solutions to reduce dropout and school failure. Ordinance No. 181/2019 of 11th June defines the terms and conditions under which schools can implement management of over 25% of the basic curriculum models for educational and training provision in primary and secondary education, with a view to developing innovation plans.

In order to support schools and teachers in this process, the Ministry of Education has created a monitoring structure for the implementation of the abovementioned educational policy measures. This support intends to promote networks for sharing knowledge and pedagogical and organizational practices that improve learning quality and teachers' professional development.

Portugal has been developing an education policy that seeks to intervene positively in schools inserted in Priority Intervention Educational Areas (TEIP schools), where there are students from more vulnerable contexts, in order to promote a quality education for all, improving learning outcomes, reducing retention and early school leaving.

The TEIP program, regulated by Legislative Order No. 20/2012, of 3rd October, has enabled the 137 school clusters that integrate these territories to have the necessary conditions for the promotion of the education success of all students by means of strengthening the schools' autonomy, with the implementation of their own projects in line with their realities and local contexts.

The Directorate-General for Education, as the coordinating organism of the program, established new guidelines in 2018, so that, in the scope of the new legal framework for curriculum autonomy

**UNESCO – Report of the 10th Consultation
On the implementation of the Convention and Recommendation against Discrimination
in Education 1960 - 2019**

and flexibility, TEIP schools can continue to foster inclusion and education success of all students, bearing in mind the priority goals of the program:

- Ensure the inclusion of all students;
- Improve the quality of teaching and learning;
- Implement and develop the Students' Profile by the End of Compulsory Schooling;
- Promote the exercise of active and informed citizenship;
- Prevent early school leaving, absenteeism and indiscipline.

These priority goals are based on what is outlined in Legislative Order N°. 20/2012, of 3rd October, in line with the guiding lines registered in Decree-Law No. 55/2018, of 6th July.

In this vein, the intervention axes for the 2018-2021 period were redesigned, having each school cluster conceived a multi-annual improvement plan based on 3 intervention axes: I - School Culture and Pedagogical Leaders; II - Curricular Management and III - Partnerships and Community. Particular emphasis is placed on this last axis, which concerns the involvement of partners and the community, in which schools are challenged to provide diversified measures which are appropriate to the local context, involving families, in monitoring the students' school path, which contribute to the development of the local community and which are able to overcome any social asymmetries that may exist.

Decree-Law no. 54/2018, of the 6th July, sets out the principles and norms that guarantee inclusion, as a process that aims to respond to the diversity of the needs and potential of each and every one of the pupils, by increasing participation in the processes of learning and educational community life.

3.8. Respect for human rights and fundamental freedoms

With regard to the full development of the human personality and strengthening fundamental rights and freedoms through education, one should mention two of the organizational principles of the Portuguese educational system, as enshrined in the Comprehensive Law on the Educational System (CLES, 1986): "Contribute to the pupil's fulfillment through complete development of personality, character formation and citizenship (...)" and "Contribute to developing democratic spirit and practice by adopting participatory structures and processes for defining education policy, administering and running the school system and daily pedagogical experience (...)" – respectively paragraphs b) and l) of Article 3rd of the CLES.

But also, a special reference should be made to the anticipation of a distinctive feature of the present curricular framework, in the form of an explicit naming of possible components of a «domain of personal and social training», which could comprehend, according to the Parliament, in 1986, «ecological education, consumer education, family education, sexual education, accident

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

prevention, health education, education for the participation in institutions, service learning, and others with identical scope».

In fact, the recently approved Decree-Law on *curriculum* for the basic and secondary education (Decree-Law no. 55/2018, 6th July) consecrates the mandatory creation of school-based strategies for the implementing of a specific curricular component, ***Citizenship and Development***, aimed at developing a broad range of active citizenship competences deemed essential for any young person to achieve until he/she reaches 18. This shows the special commitment of the Portuguese authorities on reaching the target 4.7 of the ***Sustainable Development Goals*** long before 2030, as far as it concerns formal education institutions.

The above mentioned renewal of the national curriculum for the basic and secondary education followed two major guidelines:

- the ***National Strategy for Citizenship Education*** (2017), which draws the main lines according to which Citizenship Education, through the curricular component ***Citizenship and Development***, is to be implemented within the national curriculum (either as an autonomous subject or through a transversal and interdisciplinary approach), with seventeen (plus 'others') citizenship domains among which to choose, although some must be dealt with throughout the entire compulsory schooling cycle (12 years, from primary to upper secondary education);
- the ***Students' Profile by the end of Compulsory Schooling*** (2017), conceived with the technical involvement of several bodies and individuals, both national and international, and according to which the *syllabuses* have subsequently been object of a global reorientation, in order to achieve a core of learning contents and goals – *core curriculum competences* – for each subject, consistent with the ***Profile***.

Consequently, as regards Education for Citizenship, understood as an integral part of the right to education – and aimed at promoting the respect for human rights and fundamental freedoms –, the current curricular framework (Decree-Law no. 55/2018) introduces some major changes:

- the creation of the curricular component ***Citizenship and Development***;
- the obligation, for each school or school cluster, to create and approve its own Strategy for Citizenship Education, combining the guidelines of the National Strategy and the mandatory dispositions of the Decree-Law no. 55/2018 with their own educational projects;
- the impulse to networking, through local and regional partnerships with local authorities, NGOs, corporations, etc. – again, within the framework of the school's own Strategy;
- the renewed focus on the individual student as an increasingly free and responsible agent whose autonomy is built upon a 'broad set of knowledge, skills, attitudes and values in action' (to quote an influential position paper issued within the project *OECD Education 2030*);
- the preference for a 'whole school approach', not only in *Citizenship and Development* but for the entire curriculum development.

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

In order to give a clear guidance, content and density to Citizenship Education, within the frame of *Citizenship and Development*, the legislator followed the injunction of the **National Strategy for Citizenship Education** and, as reported above, specified different areas of Citizenship Education, split into three groups:

Mandatory for all levels of education (1 st through 12 th grade)	At least in two levels of primary and lower secondary education (1 st through 9 th grade)	Optional in any school grade
1. Human Rights 2. Gender Equality 3. Interculturality 4. Sustainable Development 5. Environmental Education 6. Health	1. Sexuality 2. Media 3. Institutions and democratic participation 4. Financial literacy and consumer education 5. Road safety 6. Risk	1. Entrepreneurship 2. Labor World 3. Security, Defense and Peace 4. Animal well-being 5. Volunteering 6. Other

According to the **National Strategy for Citizenship Education** the areas chosen should (1) express a «non-abstract conception of citizenship», (2) «identify [...] key areas throughout the school curriculum» and (3) «identify [...] the essential skills of citizen education (skills for a Culture of Democracy).» In this way, «the approach to citizenship education should focus on [...] three axes [...]» through which an active citizenship is to be built: «Individual civic attitude (citizen identity, individual autonomy, human rights); Interpersonal relations (communication, dialogue); Social and intercultural relations (democracy, sustainable human development, globalization and interdependence, peace and the management of conflicts).»

In the meantime, and following the content guidelines, which were set both in a previous document – *Education for Citizenship – Guidelines*, published in December 2012 and updated in November 2013 – and later in the **National Strategy for Citizenship Education** – from 2017 onwards –, several Reference documents have also been published, or are being drafted – as already stated in the 9th consultation report (2012-2015) – and it is now expected that all areas will be covered through the next school year, and online resources are available at a specific website, at <https://cidadania.dge.mec.pt/>. However, these documents are just an optional support for schools and teachers, not textbooks or syllabuses.

This renewed curricular approach of Education for Citizenship, in a global framework of school's autonomy and curricular flexibility, allows the schools and school clusters a wide range of opportunities to deepen the active role of students in their education, namely through the

**UNESCO – Report of the 10th Consultation
On the implementation of the Convention and Recommendation against Discrimination
in Education 1960 - 2019**

adoption, or generalization, of project methodology and active service learning, fostering new approaches to curriculum development, teaching an evaluation.

At the same time, school, local and national initiatives, concerning education, within the general frame of '[r]espect for human rights and fundamental freedoms' should be considered, using as relevant benchmarks the goals and timelines established for the accomplishment of National Plans and Strategies mentioned in section 2., above.

Since there have been no changes in rules and regulations concerning school's administration and management, as well as in the Statute of the Student, the remarks made in the previous report are to be restated. In fact, the right of pupils to participate in school life is visible through the representation of students in the General Council and in the Class Councils. The students' right to participate in school life and have a voice on the issues that affect them is also exercised through their class "delegates" (elected by the students), the Council of Class Delegates and the Students' Assemblies, in accordance to the respective School Internal Regulation (drafted with the participation of the students), as well as through Students' Associations. The student's right to participate in the school life is effective in practice, and is not restricted to the mechanisms of representation provided for by the relevant legal instruments (namely, the Regulation of Autonomy, Administration and Management of Public Establishments of Pre- 2nd School, Basic and Secondary Education - Decree-Law no. 137/2012, of 2nd July- and the Statute of the Student and School Ethics - Law no. 51/2012, of 5th September)

Since 2017 the initiative *Students' Voice* is in place in order to generate in all public school spaces for collecting and discussing students' perspectives, especially regarding education priorities and human rights, and to make these contributions visible in national events with government members and high-level public administration officers.

For instance, the 70th anniversary of the Universal Declaration of Human Rights and the 40th anniversary of the ratifying of the European Convention on Human Rights Convention (December 10, 2018), were celebrated with a national one day long initiative presided by the Minister of Education, connecting all the Portuguese schools and school clusters, *via internet*, with a large and effective participation of students, who discussed and presented several topics concerning human rights protection and promotion.

Also, during the *International Conference Education, Citizenship, World* (Lisbon, 28-29 May 2019) took place another *Students' Voice Debate* moderated by the State Secretary for Education and focused on topics of the Conference. Organized by the General Directorate of Education (*Direção-Geral de Educação - DGE*) in partnership with the Council of Europe, the Portuguese Speaking Countries Community and the Organization of the Ibero-American States for Education, Science and Culture, the Conference was attended by more than 100 participants (decision-makers, teachers, educational experts and students from several countries).

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

The implementation of the National Strategy for Citizenship Education, as part of the new curricular arrangements of the Decree-Law no. 55/2018, has been supported mainly by three kinds of initiatives:

- In-Service Teacher Training - Addressing relevant features of the Strategy in the context of the Decree Law no. 55/2018, from September 2018 to February 2019, 810 Citizenship and Development school coordinators (one per school cluster/school) followed the workshop 'Citizenship Education: from the guidelines to practice' (60 h); advisors from the 95 in-service training centers attended sessions specifically designed to explore subjects concerning the support to schools in *Citizenship and Development*, namely as far as it concerns contextually enshrined training choices and opportunities (Fall, 2019); teacher trainers specially qualified in the recently created new area on 'ethical and deontological training' (2017), and others with identical qualifications, attended two regional sessions aimed at presenting and explore in detail the main features of a new in-service course, 'Curriculum Development practices and assessment in **Citizenship and Development**, to be offered nationwide, with a special emphasis in student's assessment and feedback (c. 100 teacher trainers, February 2020).
- Monitoring and sharing of experiences, namely through one day-long Regional Encounters, attended by teachers from all the schools and school clusters in the country, and led by DGE-ME (in the 2018/2019 school year, 16 Encounters; in 2019/2020, 10 Encounters on November-December);
- Data collection, through enquiries on different relevant subject-matters related to the implementation of the Decree-Law no. 55/2018, namely those referring to Citizenship and Development (January and May-June 2019), relevant if only as a means to identify the main areas of concern for the schools, from the point of view of principals and of the Strategies' coordinators.

Due to the decentralized system of in-service training, it is difficult to determine the amount of in-service training workshops, courses, or short-duration training sessions (≤6 hrs.) addressing themes under the topic human rights that took place through the last four years. However, those conceived by the central administration regarding the most recent changes in Citizenship Education can be, and are already, offered by many of the 95 training centers nationwide. Besides, the new centrality of this topic is a major incentive for all teacher's schools.

Although only marginally involved in direct in-service teacher training, since it is not a distinctive dimension of its mission, the General Directorate of Education (*Direção-Geral de Educação - DGE*) has promoted in recent years training courses, workshops and short duration training sessions that fit the general purpose of promoting the respect for human rights and democratic values, as shown in tables 1 and 2. Some of these initiatives are attended by teachers who will later replicate them.

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

Years	Modality	Title	No. of teachers involved
2016-2017	Training course	Protecting Children and Young persons	42
2016			68
2017	Workshop	<i>Media</i> literacy and journalism: pedagogic practices with and about <i>media</i>	100
2018-2019			30
	Training course	Teaching the Holocaust: a starting point for Citizenship Education and (the education on) Human Rights	40
	Training course	Development Education as a dimension of Citizenship Education	62
2019-2020	Training course	Teaching the Holocaust: a starting point for Citizenship Education and (the education on) Human Rights	

Years	Title	No. of teachers involved
2016-2018	Digital Citizenship- Project SafeNet	416
	Safe Internet for teachers	37
	<i>Cognitive</i> – Steering project for the Reference Framework of competences for democratic Culture (RFCDC)	34
	Democracy and Human Rights - Steering project for the Reference Framework of competences for democratic Culture (RFCDC)	39
	<i>Interpersonal</i> - Steering project for the Reference Framework of competences for democratic Culture (RFCDC)	42
	The Self - Steering project for the Reference Framework of competences for democratic Culture (RFCDC)	41
	Intercultural Issues - Steering project for the Reference Framework of competences for democratic Culture (RFCDC)	41
	Sexual Violence in the context of Intimacy Relationships (SVIR)	108
2019-2020	Development Education Guidelines - preschool, basic and secondary education: coupling with the curricular component of <i>Citizenship and Development</i>	37

The need to assess the progress of the schools and school clusters in fulfilling all the distinctive dimensions of the curricular component **of Citizenship and Development** introduced in 2018 is, to a large extent, propelled by the conjunction of (1) their obligation to monitor the local strategies for Citizenship Education, as stated by the Decree-Law no.55/2018, with (2) the renewed list of indicators designed by the General Inspectorate for Education and Science (*Inspeção-Geral da Educação e Ciência* – IGEC) for the 3rd cycle of external evaluation of the schools performance, issued in the first quarter of 2019. This list ostensibly accommodates those novelties contained in the legislation which will be subjected to a regular external evaluation.

The proposed indicators are, in many ways, a translation of the guiding principles, values and areas of competence put forward in the major documents above described, and are aimed at inspiring schools to develop their own monitoring devices. Some titles for indicators are as follows:

UNESCO – Report of the 10th Consultation

On the implementation of the Convention and Recommendation against Discrimination in Education 1960 - 2019

- promoting autonomy and individual responsibility; promoting participation and involvement in the community; promoting resilience; preventing and protecting from risk taking behavior; [fostering] appreciation and respect for diversity; designing and effect cross-curricular projects in Citizenship Education; adopting universal and selective procedures in order to guarantee the inclusion of children and students; taking action in order to improve results of children and students at risk, namely those from disadvantaged socio-economic contexts; participation of children and students in school initiatives in the domains of personal training and citizenship; involvement of the students in the different organs and structures of the school; volunteering; solidarity activities; actions aimed at supporting inclusion; democratic participation.

The second attached document - PRINCIPES DIRECTEURS POUR L'ÉTABLISSEMENT DES RAPPORTS DES ÉTATS MEMBRES SUR L'APPLICATION DE LA CONVENTION ET DE LA RECOMMANDATION CONCERNANT LA LUTTE CONTRE LA DISCRIMINATION DANS LE DOMAINE DE L'ENSEIGNEMENT (1960) - presents an unnumbered number recommendations regarding the preparation of the periodic report that must be followed by the signatory States, alluding to the existence of a set of closed and open questions that are deduced constitute, or will constitute, the guide to the content of the report itself (cf. point 5 - Modalités - in which it explicitly states that « Afin de simplifier les principes directeurs tout en apportant aux États membres les indications indispensables pour les guider dans la formulaci3n de leurs r3ponses, il est propos3 deux series of questions / remarks: (1) Des questions ouvertes ou ferm3es [...]; (2) Des indications additionnelles visant 3 aider les 3tats membres 3 mieux structurer et d3tailler leurs r3ponses aux questions ouvertes [...] » (p. 3). It turns out, however, that the document does not yet contain any indicative questions and / or directives that allow the content of the 2017-2020 report to be structured, thus not making it subject to a comparative analysis of the real situation of each signatory State.

a mis en forme : Franais